

24VECV04392 24VECV04392

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-01

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES

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Case Number: 24VECV04392 Hearing Date: September 1, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LUSINE

GASPARYAN, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware Limited Liability

Company; CASA DE CADILLAC, a California Corporation; and DOES 1 through 30, inclusive,

Defendants.

CASE NO: 24VECV04392

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

MOTION FOR ATTORNEY FEES

Dept. W

8:30 a.m.

September 1, 2026

[TENTATIVE] ORDER: The Court GRANTS

Plaintiff's Motion for Attorney Fees, in the modified amount of \$14,205.05.

Background

This

is a lemon law case. Plaintiff Lusine Gasparian alleges that on March 23, 2023, they entered into a lease agreement for vehicle manufactured by Defendant General Motors, LLC. Plaintiff alleges that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On September 11, 2024, Plaintiff brought suit against Defendants General Motors, LLC, and dealership Casa de Cadillac, alleging fraud, violations of the Song-Beverly Act, violations of the Magnusson Moss Warranty Act, violation of BPC § 17200 and 17500, negligence, and strict liability.

On October 3, 2025, the parties settled this case out of court for \$180,000.00.

Now, the Court hears Plaintiff's motion for attorney fees.

Discussion

Plaintiff requests a total of \$106,243.55 in attorney fees and costs. (Mot. for Attorney Fees, pp. 5:12-19.) Specifically, Plaintiff requests \$66,989.00 in reasonable attorney fees, \$33,494.50 as a 1.5x lodestar multiplier, \$1,185.00 in assistant fees, and \$4,575.05 in costs. (Ibid.)

Plaintiff bases their request for fees on the fee-shifting provision of the Song-Beverly Act, which states that a prevailing buyer can, "recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution." (Civ. Code § 1794(d).) Plaintiff also asserts that the settlement agreement between the parties gives them the right to

recover fees and costs by motion. (Mot. for Attorney Fees, p. 7:3-7.) Thus, the Court will proceed and analyze this motion on the merits.

i)

Fee Motion Analysis

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ... The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” ((PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 [internal citations omitted]); (see Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818 [applying the lodestar method to determine attorneys’ fees in Song-Beverly action].) Thus, the Court will analyze the reasonableness of: i) Plaintiff’s lodestar multiplier request, ii) Plaintiff’s hourly rates, iii) Plaintiff’s hours, and iv) Plaintiff’s costs.

A. Lodestar Multiplier

First, the Court will analyze Plaintiff’s request for a 1.5x lodestar multiplier (\$33,494.50). While the baseline lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award[;]” and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138-1139.)

The Court finds that the facts of this case don’t support the application of a multiplier. There is no indication that this lemon law case was complex or presented any challenging legal issues, particularly considering

that Plaintiff's counsel specializes in these types of cases. Additionally, there is no evidence that Plaintiff's counsel was precluded from taking other cases because of the nature of this case. Lemon Law firms take on these cases hundreds at a time, so the opportunity cost of taking on one more is negligible.

Nor is the success achieved by Plaintiff's counsel exceptional. This case was filed in September of 2024, and settled in October of 2025, with only a single motion to compel deposition filed. The Court further notes that counsel's skill and experience is also being factored into the reasonableness of their fees. Thus, it would be unreasonable to award an enhancement here. (See *Holguin v.*

Dish Network LLC (2014) 229 Cal.App.4th 1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].)

For these reasons, the Court declines to grant this multiplier.

B. Plaintiff's Hourly Rates

Second, the Court will evaluate the reasonableness of Plaintiff's hourly rates. Plaintiff bills for the time of three lawyers, and one assistant – Hovanes Margarian, at a rate of \$650 and \$750 an hour, Shushanik Margarian at \$550 and \$670 an hour, Patrick Kimbal at \$700 an hour, and Elmira Oganyan at \$150 an hour. (Margarian Decl. Ex. A, p. 27.)

"[T]he court's discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client." (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395 [emphasis added].) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys' efforts are unorganized or duplicative. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635, fn. 21.) Moreover, courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. (*East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th

426, 436-437.)

Here, the Court has determined that Plaintiff's requested rates are too high. The Court does not believe that high-volume, boilerplate lemon law cases like this one justify rates as high as \$600 to \$700 an hour. The Court has seen enough suits brought under Song-Beverly to know that every paper filed in these cases, from the Complaint, to the discovery requests, to the Demurrer oppositions are copied and pasted from templates, with minimal personalization to each client. What's more, the issues presented in this case were not novel or complex. Thus, there was no special skill or insight required to litigate this case. Moreover, the only motion filed in this entire case was a brief motion to compel deposition. Thus, there was no special skill or insight required to litigate this case.

For similar reasons, the Court also takes issue with Plaintiff charging significantly higher hourly rates for some of their more experienced lawyers. The logic for why a more senior lawyer can charge higher rates is that they will bring more knowledge to the table, work more efficiently, and produce better outcomes for their clients. That logic does not hold in this context. The only motion practice in this case beyond discovery motions (that were denied) was a Motion for Summary Judgment filed by the Defendant just four days before the case settled. Additionally, this case also did not involve any complex issues of law. Whatever documents that were filed were based on templates and needed next to no specific factual personalization. Thus, charging significantly higher rates is not reasonable, as this work could have been done by a much less experienced attorney. (See *Mikhaelipoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 256 [Court of Appeals held that it was not an abuse of discretion for the trial court to reduce the hourly rates of every lawyer in a lemon lawsuit to \$350.00].)

For these reasons, the Court reduces the hourly rates of Plaintiff's attorneys Hovanes Margarian, Shushanik Margarian, and Patrick Kimbal to \$350 an hour.

C. Plaintiff's Hours Billed

Next, the Court will assess the reasonableness of Plaintiff's hours billed.

The

Song-Beverly Act, “requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470 [quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104].)

Moreover, “[w]hen a ‘voluminous fee application’ is made, the court may ... ‘make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure.’” (Kerkeles v. City of San Jose (2015) 243 Cal.App.4th 88, 102.) Moreover, “trial courts need not, and indeed should not, become green-eyeshade accountants. The essential goal in shifting fees (to either party) is to do rough justice, not to achieve auditing perfection. So trial courts may take into account their overall sense of a suit, and may use estimates in calculating and allocating an attorney’s time.” (Fox v. Vice (2011) 563 U.S. 826, 838.)

Here, Plaintiff bills for an astonishing 109.7 hours of time across three lawyers in a case with only a single substantive motion filed. (Margarian Decl. A, p. 27.) As explained, the Court’s overall sense of this suit is that it is a typical lemon law case that involved no serious motion practice beyond a single minor discovery dispute. Moreover, Plaintiff submits 26 pages of billing records. (Ibid.) By spreading this billing across so many lawyers and entries, Plaintiff makes it difficult for the Court to evaluate the reasonableness of each individual entry. Thus, Plaintiff’s billings are voluminous and are therefore subject to across-the-board cuts in hours. For these reasons, the Court will reduce Plaintiff’s requested attorney hours from 109.7 to 25.

By contrast, Plaintiff’s billing for assistant administrative work spans only one page. (Margarian Decl. Ex. A p. 21-22.) Moreover, these billings are focused entirely on standard proofreading tasks. (Ibid.) Having reviewed these hours the Court takes no issues with these 7.9 hours.

D. Plaintiff’s Costs

Finally, the Court will evaluate Plaintiff’s request for \$4,575.05 in

costs. (See Memorandum of Costs.) Under CIV § 1794(d), when a buyer prevails in a Song-Beverly action, “the buyer shall be allowed . . . to recover . . . the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (CIV § 1794(d) [emphasis added].) Thus, Plaintiff is entitled to recover any costs they reasonably incurred as part of this litigation.

Defendant argues that \$3,902.62 of these costs should be denied. Specifically, Defendant requests the following requests be struck:

1) Filing, E-Filing, and
Service Fees

First, Defendant requests this Court strike multiple cost requests related to filing, e-filing, and service fee costs. (Opp. p. 10.) Defendant argues these costs were excessive and unnecessary. (Ibid.) The Court disagrees. Administrative filing fees and service fees are required of every litigant in a case. Thus, these are standard fees that should be expected of litigation and are therefore reasonably incurred. Additionally, the Court notes that filing and service costs are allowable under CCP § 1033.5(a). While this statute is not the relevant authority in this Song-Beverly case, it still provides persuasive authority for the position that California courts believe that jury fees are a reasonably incurred cost.

Thus, the Court finds these costs reasonably incurred.

2) Expert Costs.

Next, Defendant requests this Court strike \$2,795.90 in costs related to expert fees for David Gurul as well as a vehicle inspection charge. (Opp. p. 10:12-16.) Defendant points out that Plaintiff’s memorandum of costs fails to provide any documentation for these costs. (Ibid.) However, the Court notes that, in Reply, Plaintiff provides invoices for their expert costs. (Margarian Decl. Re: Reply, Ex. B.) Additionally, the Court finds that initial expert analysis of a case like this is a reasonably necessary cost, as it allows Plaintiff to evaluate the strength of their case.

Thus, the Court finds these costs reasonably incurred.

3) Appearance Attorney Fees

Next, Defendant requests the Court strike \$305 in appearance attorney fees. (Opp. p. 10:20-24.) The Court agrees that these costs were not reasonably necessary to litigating this case. In general, a lawyer may hire an appearance attorney to cover for a case appearance they may not be able to attend. However, in this Court's experience, appearance attorneys are used at nearly every hearing by lemon law litigants. Exporting this appearance roll allows firms may file an ever-increasing amount of cases. In the Court's experience, these appearance attorneys typically slow down the litigation process, as they are rarely, if ever, prepared or knowledgeable about the case they are appearing for. Thus, the value of an appearance attorney appears to be the convenience they provide to the Plaintiff's firm, rather than the case itself. Thus, the Court does not find these costs were reasonably incurred.

For these reasons, the Court will strike these \$305 in costs.

4) Mediation

Defendant also moves to strike \$550 in costs related to mediation costs. (Opp. 10:2-24.) Here, Defendant points out that Plaintiff's memorandum of costs provides no explanation or supporting documents for these costs. (Ibid.) Additionally, the Court notes that mediation costs are not specifically enumerated as recoverable costs under CCP § 1033.5(a). (See generally, CCP § 1033.5(a).) While this is not the relevant cost statute, it does suggest that these costs are not typically seen by courts as being reasonably necessary for the litigation.

That being said, the Court disagrees that these mediation costs are not reasonably incurred. Informal attempts to resolve claims are crucial to the litigation process. This case itself was resolved out of court! Thus, the actions of both parties suggest that this was a reasonably incurred cost. Additionally, in their Reply, Plaintiff provides an invoice for these costs. (Margarian Decl. Re: Reply, Ex. C.)

For these reasons, the Court declines to strike these costs.

5) Summary

In summary, the Court will strike \$305 of Plaintiff's \$4,575.05 in requested costs.

E. Summary

In summary, the Court declines to apply a 1.5 lodestar multiplier to this case. Additionally, the Court reduces the hourly rate of Plaintiff's attorney to \$350. Next, the Court reduces the total attorney hours billed by Plaintiff from 109.7 to 25. However, the Court does not reduce the hours of Plaintiff's assistant administrative billing. Based on Plaintiff's adjusted hours and hourly rates, the Court recalculates Plaintiff's reasonable attorney fees at \$9,935. Finally, the Court will reduce Plaintiff's request for \$4,575.05 in costs by only \$305.00.

In total, the Court GRANTS Plaintiff's Motion for Attorney Fees in the modified amount of \$14,205.05.

Conclusion

The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$14,205.05.

IT
IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 1, 2026

Judge of the Superior Court